

NA HALE O MAKENA — HOUSE RULES

Owner & Resident Quick Reference · v2026-08-06A

Summary only — the full House Rules govern. Section numbers and titles match the full House Rules.

1 Contact Info: General & Emergency

- Life-safety emergency (fire, medical, crime): call 911 first, then notify the Resident Manager.
- Resident Manager: Molly Duncan · cell (808) 264-6256 · managernhom@hotmail.com
- Operational issues (elevator or entry gate not working; someone stuck in an elevator): call the Resident Manager — if the person is in distress, call 911.
- Managing Agent (contact only in an emergency, or where the Rules provide — otherwise use the Resident Manager): Destination Maui, Inc. — Rena Tamura · direct (808) 866-5979
- Website: nhomaoao.com. Keep your contact and emergency info current.

3 Occupancy & Use of Apartments

- Residential use only. No business operating out of your apartment — but a home office with no client traffic, employees, signage, or extra deliveries is allowed.
- Minimum 180 consecutive days to rent. No short-term rentals, no timesharing.
- No rental or use under 180 days for direct or indirect compensation; advertising a shorter stay is itself a violation.
- Short-term-rental violations: \$5,000/day Association fine (after a 14-day notice), plus separate Maui County fines up to \$20,000 + \$10,000/day.
- Give your tenant the House Rules; file the lease, the signed rules addendum, and tenant details with the Resident Manager before move-in.

4 Guests

- Register guests on nhomaoao.com within 24 hours of arrival whenever they stay without you.
- A stay in exchange for rent or other consideration is a rental — the 180-day minimum applies, whatever it is called.
- A stay by your immediate family or an invited guest with no rent is not a rental, however long it lasts.
- A non-family guest staying without rent for more than 90 days straight (or 180 days in a year) must be disclosed to the Resident Manager.
- Frequent turnover — more than six different occupancies in a year — may be treated as evidence of an illegal rental.

5 Conduct

- Quiet hours: 9:00 p.m. — 8:00 a.m., every day.
- Keep noise from being plainly audible in a neighbor's apartment.
- Outdoor and lanai music must not carry beyond your lanai.
- No nuisances, offensive odors, solicitation, or harassing conduct.
- Drones are not permitted without Board approval.
- Cameras/doorbells: no recording into another unit; mounts need approval.

6 Smoking

- Prohibited on all common and limited common areas — pool, Cabana, gym, walkways, stairwells, parking.
- Includes cannabis, vaping, e-cigarettes, and hookah.
- Not permitted on a lanai if the smoke drifts to a neighbor.

7 Grills & Fire Safety

- Gas grilling on lanais is permitted — only the Board-approved built-in lanai grill, no portable or free-standing grills. Charcoal and open flame are not. Keep the grill attended.
- Keep grill exhaust fans on (high recommended); do not let smoke reach another unit.
- Have the grill and its gas connection checked for leaks; if it has sat unused, open the cabinet and check for a propane smell before lighting.
- No fire pits, tiki torches, or unattended candles. No fireworks anywhere.
- Keep your in-unit smoke and carbon-monoxide alarms working with fresh batteries.

8 Owner Apartment-Access, Maintenance, Modification, Care

- You're strongly urged (not required) to keep a means of immediate access on file with the Resident Manager — a spare key, a lockbox with combination, or an entry-door code — so they can respond to an emergency when you're away. An on-island representative helps with scheduled access but isn't an emergency substitute.
- No access on file: you pay emergency forced-entry costs.
- Window tinting and films are not permitted.
- Window coverings visible from outside must suit the property's appearance — no sheets, foil, cardboard, or paper.
- Lanais: outdoor furniture and potted plants only. No storage, laundry, towels, or swimwear in view.
- No water beds, spas, or hot tubs in any apartment or on a lanai.
- Holiday decorations: Nov 15 – Jan 15, plus 14 days around any other observance; not attached to building stucco or exterior surfaces.
- Storm watch: clear your lanai.
- Gate codes and fobs are yours alone — never share or duplicate them.

9 Pool & Jacuzzi

- Open 6:00 a.m. — 9:00 p.m.; 6:00–9:00 a.m. is lap swimming.
- No lifeguard and no pool supervisor — the Association relies on owners and guests to self-police; swim at your own risk.
- You must stay with your guests. When the pool is busy, guests yield to owners and occupants, and the Resident Manager may limit the number of guests per apartment.
- Inexperienced swimmers, non-swimmers, and anyone who can't stand at the deepest point with their head above water must be with a responsible adult at all times. Anyone who needs help in the water must be supervised within arm's reach.
- Showering before you swim is encouraged. Waterproof swim pants required for anyone incontinent (a swim diaper alone is not enough).
- Do not enter the water with an infectious or communicable condition, open sores, or bandaged wounds.
- No glass. Inflatables are allowed in the pool (not the jacuzzi) and must be removed when not in use; snorkels are allowed, scuba gear is not. No running or diving.
- No speakers; keep device audio to yourself (headphones or off-speaker, inaudible to others). Take phone calls outside the pool area.
- Don't reserve chairs with belongings. Return furniture to its original position and lower umbrellas before you leave. Never prop safety gates open.
- Jacuzzi: 15 minutes maximum; no children under 5.

10 Cabana

- Free to use unreserved. Reserve it for any function of 12 or more people.
- Reserve in writing with the Resident Manager 14 days ahead; one per apartment per month.
- \$250 refundable deposit; damage or cleaning beyond the deposit is billed to you.
- Capacity 40. Functions end by 9:00 p.m.; cleanup done by 10:00 p.m.
- The owner must be present. A reservation does not close the pool.
- Alcohol: guests of legal age only — never sold, no admission charged.
- Clean up immediately after: furniture back, trash and decorations removed.

11 Gym

- Open 5:30 a.m. – 9:00 p.m. Use at your own risk.
- Under 14 not permitted on equipment; 14–17 with an adult.
- 30-minute limit per machine when others wait. Wipe down equipment. Re-rack weights.
- Up to 2 guests per apartment; stay with them. No speakers; keep device audio to yourself (headphones or off-speaker, inaudible to others). Take phone calls outside the gym.

13 Parking & Vehicles

- Each apartment has one assigned covered stall — yours only.
- Uncovered stalls are unassigned, first-come, first-served. Up to 2 vehicles per apartment may be registered and parked at the Project; the second uses an unassigned uncovered stall.
- Register your vehicle with the Resident Manager; display valid, unexpired registration and safety inspection (provide copies on request). Park only in marked stalls.
- Guest vehicles: 14 days maximum. No boats, trailers, RVs, or oversized trucks.
- Vehicles parked in violation may be towed at the owner's expense. Blocking access, a fire lane, or someone's stall may be towed immediately.
- Unregistered, inoperable, or unmoved 30 days = abandoned (towable).
- No repairs on site. Wash vehicles only in the designated car-wash area during posted hours — never in a stall; rinse the area when you're done. Nothing stored in stalls.
- EV charging: permitted in your own stall with prior written approval — never by extension cord.

14 Deliveries & Moving

- Protective elevator pads are required for every move and any bulky delivery — get them from the Resident Manager.
- Schedule with the Resident Manager 3 business days ahead.
- Mon–Sat, 8:00 a.m.–5:00 p.m. only. No Sundays or holidays.
- Haul away your own packaging and moving debris.

15 Trash & Recycling

- Bag and close all refuse; use designated receptacles. Never leave trash outside your door.
- Break down cardboard and separate recyclables.
- Appliances, mattresses, e-waste, batteries, and chemicals: not in Association bins.

16 Support Animals

- No pets. Fish and aquarium animals inside your apartment are fine.
- Support Animals are permitted as a reasonable accommodation under fair housing law. They are not pets and there is no fee or deposit.
- Requests go to the Resident Manager and are governed by the Association's Support Animal Policy.
- Keep the animal controlled at all times, never unattended, and pick up all waste immediately.
- Relieve Support Animals only in the designated relief areas shown on the condo map.
- Keep the animal from creating excessive noise, as defined in the Association's Support Animal Policy.

18 Unit Modifications and Repairs

- Board approval required before any alteration affecting structure, exterior, plumbing, or electrical.
- Work over \$1,500 needs a Hawaii-licensed contractor.
- Work hours: Mon–Fri 8–5, Sat 9–4. No loud work Sundays or holidays.
- Contractors: insurance certificate and permits to the Resident Manager first; haul your own debris.

19 Insurance & Water Damage Prevention

- Carry an HO-6 unit-owner policy.
- A loss starting in your unit: you owe the master-policy deductible.
- Braided steel supply lines required; replace lines at least every 5 years.
- Replace water heaters older than 12 years (a 24-month grace period applies from adoption).
- Away more than 72 hours (3 days)? Shut off your water at the control valve.
- Report any leak immediately.

20 If a Rule Is Broken

- Written warning first, with 14 days to fix it — then \$50, then \$100, then up to \$250/day.
- Serious matters (damage, safety, harassment, illegal conduct) draw \$1,000 immediately.
- Short-term/vacation-rental violations, including advertising: \$5,000/day after a 14-day cease-and-desist notice, in lieu of the steps above — plus separate Maui County fines (see Section 3).
- You may request a hearing before the Board within 20 days of the notice.

Not Covered in This Summary

- This handout omits 2 Definitions, 12 Common Areas & Grounds, 17 Association Staff & Vendors, 21 General Provisions, and 22 Certificate, and it summarizes the sections it does cover. Read the full House Rules for the complete text.